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Case Number: 24TRCV03929 Hearing Date: July 21, 2026 Dept: B

Moving Parties: Defendant and cross-defendant Rothenberg

Responding Party: Defendant Perez

Motion for Determination of Good Faith Settlement Pursuant to CCP 877.6

The Court considered the renewed application for determination of good faith settlement, opposition, and reply, and motion to contest and opposition.

RULING

See below.

BACKGROUND

On November 20, 2024, plaintiff Julian L. Silva, Jr. filed a complaint against Russell Allen Rothenberg, Teresa Marie Trebotic, Anthony Cortes, Matthew Dane Martinez, Jose Luis Tlaxcalteca Perez, Manuels Towing, and Felix Jose Manuel for motor vehicle negligence and negligence based on a multi-vehicle motor vehicle accident on October 30, 2024.

On January 8, 2025, Teresa Marie Trebotic filed a cross-complaint against Russell

Allen Rothenberg, Anthony Cortes, Matthew Dane Martinez, Jose Luis Tlaxcalteca Perez, and Douglas Pompilo Gonzalez for apportionment of fault, indemnification, declaratory relief.

On March 17, 2025, Russell Allen Rothenberg filed a cross-complaint against Matthew Dane Martinez, Jose Luis Tlaxcalteca Perez, Manuels Towing, and Felix Jose Manuel for equitable indemnity, contribution, and declaratory relief.

On June 12, 2025, pursuant to plaintiff's request, Manuels Towing was dismissed.

On July 8, 2025, the case was deemed related to 25TRCV00530 (Perez v. Rothenberg, et al.). In the related case, Perez named Rothenberg, Trebotic, Cortes, Mathew Dane Martinez, Douglas Pompilio Gonzalez, and Airborne Freight Lines, Inc.

On August 8, 2025, Matthew Dane Martinez filed a complaint against Anthony Cortes, Douglas Pompilio Gonzalez, Felix Jose Manuel, Jose Luis Tlaxcalteca Perez, Manuels Towing, Russell Allen Rothenberg, and Teresa Marie Trebotic for implied indemnity, total indemnity, declaratory relief, and apportionment of fault.

On September 23, 2025, Anthony Cortes filed a cross-complaint against Matthew Dane Martinez for implied indemnity, declaratory relief, and apportionment of fault.

On January 16, 2026, Antony Cortes filed a cross-complaint against Manuel's Towing and Jose Luis Tlaxcalteca Perez for negligence.

On January 26, 2026, the Court denied Rothenberg's application for good faith settlement and granted Perez and Trebotic's motions to contest.

Trial is scheduled for March 22, 2027.

LEGAL AUTHORITY

Under
CCP §877.6(a)(2), "In the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. . . ."

Under CCP §877.6(b), "The issue of the good faith of a
settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing."

Under
CCP §877.6(c), "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault."

"The
party asserting the lack of good faith shall have the burden of proof on that issue." CCP § 877.6(d).

DISCUSSION

Under CCP §877.6(a)(2), Rothenberg's renewed application
requests that the Court find his settlements with Silva, Cortes, Trebotic, and Perez to be in good faith.

Defendant

and cross-defendant Jose Luis Tlaxcalteca Perez contests defendant and cross-defendant Rothenberg's renewed application for determination of good faith settlement.

Rothenberg acknowledges that the Court denied his original application but that the renewed application addresses each procedural and evidentiary deficiency identified in the Court's prior denial.

In City of Grand View Terrace v. Superior Court (1987) 192 Cal. App. 3d 1251, 1261, the court provided the following guidance regarding a motion for a good faith settlement determination:

This court notes that of the hundreds of motions for good faith determination presented for trial court approval each year, the overwhelming majority are unopposed and granted summarily by the trial court. At the time of filing in many cases, the moving party does not know if a contest will develop. If each motion required a full recital by declaration or affidavit setting forth a complete factual response to all of the Tech-Bilt factors, literally thousands of attorney hours would be consumed and inch-thick motions would have to be read and considered by trial courts in an exercise which would waste valuable judicial and legal time and clients' resources. . . . That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.

If the good faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for the hearing by placing the burden of proving the lack of good faith on the contesting party. Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the nonsettlor who asserts that the settlement was not made in good faith. If contested, declarations by the nonsettlor should be filed which in many cases could require the moving party to file responsive counterdeclarations to negate the lack of good faith asserted by the nonsettling contesting party.

192 Cal. App. 3d 1251, 1260-1261 (citation omitted).

“[Code of Civil Procedure] Section 877.6 was enacted by the Legislature in 1980 to establish a statutory procedure for determining if a settlement by an alleged joint tortfeasor has been entered into in good faith and to provide a bar to claims of other alleged joint tortfeasors for equitable contribution or partial or comparative indemnity when good faith is shown.” IRM Corp. v. Carlson (1986) 179 Cal. App. 3d 94, 104.

In Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499, the California Supreme Court identified the following nonexclusive factors courts are to consider in determining if a settlement is in good faith under section 877.6: “a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.”

The evaluation of whether a settlement was made in good faith is required to “be made on the basis of information available at the time of settlement.” Tech-Bilt, 38 Cal.3d at 499. “‘[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.’ [Citation.]” Id. at 499.

“The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” Tech-Bilt, 38 Cal.3d at 499-500.

“Thus, Tech-Bilt held that in determining whether a settlement was made in good faith for purposes of section 877.6, a key factor a trial court should consider is

whether the amount paid in settlement bears a reasonable relationship to the settlor's proportionate share of liability. (Tech-Bilt, supra, 38 Cal.3d at pp. 499–500 . . . .) This is because one of the main goals of section 877.6 is 'allocating costs equitably among multiple tortfeasors.' (Tech-Bilt, supra, 38 Cal.3d at p. 502 . . . .)." TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 166. "Accordingly, a court not only looks at the alleged tortfeasor's potential liability to the plaintiff, but it must also consider the culpability of the tortfeasor vis-à-vis other parties alleged to be responsible for the same injury.
Potential liability for indemnity to a nonsettling defendant is an important consideration for the trial court in determining whether to approve a settlement by an alleged tortfeasor.
[Citation.]" Id. at 166.

This case arises out of a multi-vehicle incident that occurred on October 30, 2024, on the northbound 405 freeway, near Manhattan Beach Blvd. The original application explains that the incident involved four passenger cars, one tow truck (with a vehicle in tow, along with a passenger), and a "Freightliner" truck. Rothenburg was driving a Porsche (V-1), Treobotic was driving a BMW (V-2), Cortes was driving a Nissan (V-3), Martinez was driving a Toyota (V-4), Perez (plaintiff in related case) was driving a tow truck (V-5), which was towing a Chevrolet owned by plaintiff Silva, and Gonzalez was driving the Freightliner truck (V-6). The application states that the CHP report, based on video footage, indicates that the incident occurred as Rothenberg collided into the rear of Trebotic's vehicle; and due to the collision, Trebotic's vehicle collided with Cortes' vehicle. Immediately thereafter, Martinez' vehicle collided into Rothenberg's vehicle's rear, causing Rothenberg to collide into the rear of Trebotic's vehicle a second time.
Simultaneously, the tow truck driven by Perez collided into the front of Cortes' vehicle, causing the former to overturn and slide on the roadway; the tow truck then slid across lanes and collided into the rear of the "Freightliner" driven by Gonzalez.

Rothenberg was insured under a Geico policy with a limit of $25,000 per person and $50,000 per occurrence. Rothenberg settled for $15,000 as to Trebotic and Toni Maria Gonzales; $15,000 as to Silva; $15,000 as to Cortes; and $5000 as to Perez.

First,

as to a rough approximation of plaintiff Silva's total recovery, although the renewed application does not address, the original application set forth the various parties' claimed special medical damages:
as of October 15, 2025, plaintiff's damages were $104, 237; as of June 24, 2025, Cortes' damages were $69,675; as of June 20, 2025, Trebotic's damages were $54,885; and as of June 27, 2025, Perez's damages were $3610.

Perez asserts that there are additional damages, which the renewed application does not address: as to plaintiff Silva, $745,000 in future medical specials; as to Cortes, as of September 20, 2025, $82,915 in medical specials, $418,193 in future medical specials and $20,278 in loss of household services; as to Trebotic, $54,885 in medical specials, $44,6563 in lost wages and $150,000 in future economic damages. Perez contends that the damages listed do not account for any general damages of pain and suffering. Perez argues that Rothenberg is only settling for .018% of Silva's damages, .029% of Cortes' damages, and .06% of Trebotic's damages and that a "mere settlement of $50,000 where the economic damages exceed $1,616,000 without any basis cannot possibly be considered to be in good faith" and that Rothenberg "imposes a disproportionate cost on the remaining Defendants."

Rothenberg responds that the figures Perez cites are unverified, dated, and incomplete and that Perez's "arithmetic silently assumes Rothenberg bears 100% of every claimant's damages." He contends that "[r]aw specials, standing alone" are not competent evidence as to Rothenberg's liability at the time of settlement.

Second, as to settling Rothenberg's proportionate liability, Rothenberg asserts that the October 30, 2024 collision occurred in two physically and causally distinct phases. He contends that phase one involved a conventional multi-vehicle rear-end sequence in northbound lane one. Phase two was the overturn of Perez's 2017 Hino commercial tow truck, operated in the HOV lane while towing another vehicle, which lost control and overturned, striking Cortes' vehicle. Rothenberg argues that the commercial truck overturn was the dominant causal event as Perez admitted traveling at approximately 55 mph immediately before the overturn and admitted operating the tow truck in the HOV lane, which was in violation of Vehicle Code §§22348(c) and 22406. Rothenberg contends that

Matthew Dane Martinez's vehicle striking the rear of Rothenberg's Porsche contributed additional Phase One impact forces.
Rothenberg argues that his fault is factually limited to Phase One based on his initial contact with Trebotic's vehicle and is causally distinct from Perez's Phase Two overturn. He also argues that California comparative fault is not a "but-for" test. Rather, he asserts, it is a standard for apportioning comparative fault among defendants who each independently violated their duty of care and that temporal priority is not the same as causal primacy for comparative fault purposes.

Perez contends that Rothenberg was the proximate cause of the chain of events of the subject accident, referring to a video of the accident and the Traffic Collision Report. Perez argues that the Traffic Collision Report confirms that Rothenberg was driving "at a speed that was unsafe for the traffic conditions" and that as a result of the unsafe speed, Rothenberg was unable to stop his vehicle, which collided into the rear of Trebotic's vehicle, which pushed Trebotic's vehicle forward into the rear of Cortes. He asserts that Martinez also contributed to the accident when he was travelling at an unsafe speed and collided with Rothenberg. Perez denies any liability.

In response, Rothenberg argues that his proportionate share is properly assessed and modest. He also contends that the Traffic Collision Report and video evidence do not establish bad faith. He also disputes that the TCR and any officer fault findings are competent evidence.

Third, as to the amount paid in settlement, Rothenberg settled for his policy limits of $50,000.

Fourth, as to the allocation of settlement proceeds, Rothenberg allocated the policy limits between four parties. He asserts that the individual settlement amounts "correlate sensibly" with each party's relationship to Rothenberg's specific conduct and the "applicable comparative fault analysis." In the motion to contest, Perez argues that the application does not allocate the settlement funds between economic and non-economic damages and that the remaining parties are entitled to an offset as to the economic damages, citing to Civil Code §§1431.1 to 1431.5. In response, Rothenberg contends that allocation affects credits at judgment, not good faith.

Fifth, the Court recognizes that settling cross-defendant should pay less in settlement than if he were found liable after a trial.

Sixth, as to financial condition and insurance policy limits, the motion asserts that the policy limit is $50,000 per incident. As to his own financial condition, Rothenberg testified that he has been unemployed for approximately two and a half years and is unable to work due to physical limitations from multiple accidents; his income is social security, partially levied by Medi-Cal and is insufficient to pay $600 a month rent; he has no savings, no IRA, no 401(k); he does not own real estate; the 2015 Porsche 911 was bank financed and he held no equity interest; his current vehicle is a financed Ford Expedition with a history of missed payments; all his credit cards are maxed out; and he is applying for SNAP/EBT benefits.

Perez does not address in either the motion or his opposition.

Seventh, as to whether there is evidence of collusion, fraud, or tortious conduct aimed to injure the interests of defendants/cross-complainants, Rothenberg asserts that each settlement was negotiated independently between adverse parties represented by separate, independently retained counsel and that the agreements were executed through independent electronic signature platforms at separate times across a four-month span. He argues that the reduced settlement with Perez reflects his comparative fault, and not a structured arrangement designed to harm remaining defendants.

Perez argues that the “silence in the Application about the value of this matter and the lack of allocation of economic versus non-economic damages is indicative that Rothenberg and the settling parties are being collusive and acting in bad faith.” In response, Rothenberg argues that Perez’s collusion argument is speculation, not evidence.

After considering the Tech-Bilt factors, the Court determines that the settlements entered into between settling cross-defendant Rothenberg and Silva, Perez, Trebotic, and Cortes were made in good faith within the meaning of CCP §877.6. The Court finds that Perez has not met his burden of showing that the settlements were not made in good faith, or so far out of the ballpark in relation to the above factors as to be inconsistent with CCP §877.6’s equitable objectives.

ORDER

Defendant Russell Allen Rothenberg’s renewed motion/application for determination of good faith settlement is GRANTED.

The Court ORDERS that in this action and all related actions, all present claims and cross-complaints of any kind for implied indemnity, equitable comparative contribution, and apportionment or partial or comparative indemnity and apportionment based on comparative negligence or comparative fault against Russell Allen Rothenberg be and are dismissed with prejudice. Any and all present and future claims against him, by or on behalf of joint tortfeasors or co-obligors, are barred.

Rothenberg is ordered to give notice of the ruling.